



File No.: EXP202312468

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant) states that a Union Delegate from the company where she works sent an email to the company's staff informing them of the possibility of accessing a course subsidized by SEPE, which led the claimant to express interest in it, contacting the entity offering the course, PROSULTING, although the claimant was convinced that the course was being conducted through the Works Council of the entity where she works.

She indicates that PROSULTING, without adequately informing her about the data processing, requested documentation containing personal data to process her application. She states that, since the defendant company did not provide sufficient guarantees, on July 2, 2023, she requested via email information about the processing of her data, its destination, and opposed the transfer of her data, without receiving a response. She provides a thread of exchanged emails with the defendant entity.

SECOND: On July 4, 2023, a complaint was received in this Agency filed by the claimant against PROSULTING, S.L.N.E. (hereinafter, the defendant) for not having duly attended to her right of opposition.

THIRD: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On October 13, 2023, the defendant submitted a document stating that

“After receiving the complaint filed against PROSULTING SLNE, we do not understand this complaint, as the personal data protection of the claimant or anyone else has not been violated in any case. We are an educational entity and work with various collaborators and training providers, including SEPE. (...)

What we do not understand is that the person who filed the complaint: We have spoken with her and she is willing to withdraw the complaint if requested. Since she is participating in one of the training sessions regarding which she filed the complaint (...)

FOURTH: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the claimant. Consequently, on October 4, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the defendant a hearing period, to present any allegations deemed appropriate within ten working days, stating, in summary, that

“The claimant refers to distrust regarding the documentation requested for enrollment in the training. This documentation is only necessary to carry out the procedures with SEPE; in no case is additional information or information for other purposes requested.

While it is true that when requesting the documentation, there was no proper information provided about its processing, this was due to a procedural error (...) not putting the correct signature with the legal texts on data protection in the email where the documentation was requested.

(...) Since sufficient guarantees were not offered to the claimant, she requested on July 2, 2023, via email, information about the processing of her data, its destination, and opposed the transfer of data. From PROSULTING, we do not consider the request for the exercise of rights under Article 13 of the RPD and Article 21 of the RPD to have been neglected, given that everything was clarified verbally with the claimant, and no written response was given as she ultimately enrolled in the course, considering that the lack of trust had disappeared and everything was clarified.”

FIFTH: After examining the document submitted by the defendant, it is forwarded to the claimant, so that, within ten working days, she may formulate any allegations she deems appropriate, indicating, in

summary, that

"It is true that on October 27, I was called for the first time by someone who introduced himself as the director of PROSULTING, phone number (...), informing me that the documents requested in July were to verify that I met the requirements for the course. He also told me that the academy requested it at the behest of SEPE. He apologized for the management of the technician in charge, and I am currently taking the course normally."

SIXTH: The responsible party was granted a hearing, and he states that "At all times we have indicated to Ms. (...) both by phone, by email, or to her union with which we maintain a collaboration agreement, the reason for the request for her

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personal data, without which it is impossible to process the registration in the course subject to this file."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including enforcing the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The outcome of this forwarding did not satisfy the claims of the complainant. Consequently, on October 4, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the current procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

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“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Object

Article 21 of the GDPR, regarding the right to object, establishes the following:

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"1. The data subject shall have the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them based on the provisions of Article 6, paragraph 1, letters (e) or (f), including profiling based on those provisions. The data controller shall cease to process the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. When the processing of personal data is for the purpose of direct marketing, the data subject shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the right referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of

Directive 2002/58/EC, the data subject may exercise their right to object by automated means using technical specifications.

6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89, paragraph 1, the data subject shall have the right, on grounds relating to their particular situation, to object to the processing of personal data concerning them, unless the processing is necessary for the performance of a task carried out for reasons of public interest."

V

Conclusion

The rights procedure is initiated as a consequence of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts relating to the requested right will be analyzed and assessed, excluding other issues.

In this case, and taking into account what is stated in the first paragraph of this Legal Basis, from the examination of the documentation provided, it has been established that the complainant requested the respondent to oppose the transfer of their data, without any record that the latter has expressly responded to the mentioned right of opposition by sending the required response to their request as established in Article 12.4 of the GDPR.

Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the submission of allegations regarding the present procedure, initiated precisely for not duly addressing the request in question.

The aforementioned rules do not allow the request to be overlooked as if it had not been raised, leaving it without the response that the controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, where appropriate, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in any case, using any means that justifies the receipt of the response.

Since no copy of the necessary communication that must be directed to the complainant informing them about the decision taken regarding the request for the exercise of rights is attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. considering that the provisions of Article 21 of the GDPR have been infringed and to urge PROSULTING, S.L.N.E. with NIF B86008141, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with what is established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to PROSULTING, S.L.N.E.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish

Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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